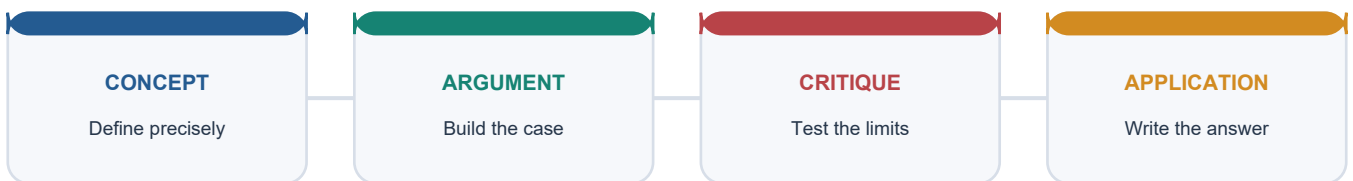


SOLVED PRACTICE WORKBOOK

Constitutional Interpretation Doctrines - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Workbook Contents

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Constitutional Interpretation Doctrines - Solved Practice Workbook

PRACTICE WORKBOOK OVERVIEW

Attempt each item before reading its explanation. For Mains, begin with the governing Article, state the exact test, attach a leading holding, explain the legal effect and end with the strongest limitation.

Practice contract: Exactly 32 original MCQs appear before the PYQs. Correct answers rotate A -> B -> C -> D eight times. Every option has a substantive, question-specific explanation and every question has a unique examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1

Which statement best describes constitutional doctrines?

A. They are court-developed tests anchored in constitutional text and precedent. B. They are additional Articles implied into Part III. C. They are political conventions immune from judicial review. D. They permit courts to choose any result that advances justice.

Answer: A.

Option-specific explanations:

- **A - Correct:** doctrines organise adjudication through enacted provisions and controlling precedent.
- **B - Incorrect:** severability, eclipse and similar doctrines are not separately numbered constitutional Articles.
- **C - Incorrect:** doctrines are legal tests; conventions have a different and often non-justiciable status.
- **D - Incorrect:** judicial choice remains bounded by text, structure, competence and precedent.

Examiner trap 1: A doctrine's importance does not convert it into an Article.

MCQ 2

A statute contains an unconstitutional clause that can be separated, while the remaining scheme is complete and would have been enacted independently. What follows?

A. The entire statute must automatically fail. B. The invalid clause may be severed under Article 13. C. The clause is merely eclipsed for all persons. D. The court must read a new clause into the statute.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** whole-statute invalidity is unnecessary when the legal severability test is satisfied.
- **B - Correct:** separation, legislative intent and workable remainder support partial invalidation.
- **C - Incorrect:** eclipse classically concerns inconsistent pre-Constitution law, not this partial-remedy question.
- **D - Incorrect:** adding a clause is not required when deletion preserves the enacted scheme.

Examiner trap 2: Do not confuse partial invalidity with eclipse.

MCQ 3

Which combination states the full severability inquiry most accurately?

A. Physical punctuation and judicial convenience only. B. Legislative purpose and popular support only. C. Separability, legislative intent, workable remainder and unity of scheme. D. Possibility of a narrower meaning and proportionality only.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** punctuation does not establish independent legislative operation.
- **B - Incorrect:** political support is not the constitutional severability test.
- **C - Correct:** these elements reflect *R.M.D. Chamarbaugwala* and Article 13's limited invalidity.
- **D - Incorrect:** narrower meaning concerns reading down; proportionality concerns rights justification.

Examiner trap 3: A removable sentence may still be inseparable in legislative design.

MCQ 4

Which distinction between severability and reading down is correct?

A. Both necessarily delete the invalid words. B. Reading down applies only to constitutional amendments. C. Severability always preserves the whole provision. D. Severability removes invalid matter; reading down selects a valid meaning the text can bear.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** reading down ordinarily retains the provision's text.
- **B - Incorrect:** reading down is commonly applied to statutes in rights review.
- **C - Incorrect:** severability may remove a provision or application rather than preserve it whole.
- **D - Correct:** the two tools operate on different objects-textual parts and permissible meaning.

Examiner trap 4: A saving interpretation cannot be disguised textual surgery.

MCQ 5

The classical doctrine of eclipse primarily concerns

A. a pre-Constitution law inconsistent with a Fundamental Right under Article 13(1). B. every unconstitutional amendment after *Kesavananda Bharati*. C. a State law receiving Presidential assent under Article 254(2). D. an obiter statement losing precedential force.

Answer: A.

Option-specific explanations:

- **A - Correct:** *Bhikaji Narain Dhakras* is the standard pre-Constitution-law anchor.
- **B - Incorrect:** amendment review is governed by Article 368 and basic structure.
- **C - Incorrect:** assent concerns repugnancy, not dormant rights inconsistency.
- **D - Incorrect:** obiter classification belongs to precedent doctrine.

Examiner trap 5: Eclipse is not a synonym for any temporary legal disability.

MCQ 6

Which qualification concerning eclipse is safest?

A. Every post-Constitution law is repealed on the date of a rights violation. B. Its classical field is pre-Constitution law; later citizen/non-citizen applications require right-specific precedent. C. An eclipsed law can never affect past transactions. D. The doctrine applies only after Parliament expressly invokes it.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Article 13 invalidity is not legislative repeal.
- **B - Correct:** *Ambica Mills* cautions that operation can depend on the protected class and right.
- **C - Incorrect:** historical operation and non-protected contexts cannot be erased by slogan.
- **D - Incorrect:** eclipse is a judicial doctrine, not a statutory declaration procedure.

Examiner trap 6: Avoid a universal rule for post-Constitution laws.

MCQ 7

What is the core of *Basheshar Nath v CIT*?

A. All contractual and procedural rights are incapable of waiver. B. Only Article 14 may be waived. C. Consent cannot generally validate State action contrary to Fundamental Rights. D. Waiver converts an unconstitutional law into a constitutional amendment.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** personal, statutory and procedural protections require their own legal analysis.
- **B - Incorrect:** the case rejects waiver as a general validation route for Fundamental Rights.
- **C - Correct:** constitutional public policy constrains the State despite individual consent.
- **D - Incorrect:** private consent cannot exercise Article 368 power.

Examiner trap 7: Non-waiver protects public constitutional order, not every private advantage.

MCQ 8

A State law substantially regulates intoxicating liquor but incidentally affects an inter-State commercial activity. Which doctrine first identifies its legislative field?

A. Repugnancy. B. Prospective overruling. C. Constitutional morality. D. Pith and substance.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Article 254 arises only after valid laws in the same Concurrent field conflict.
- **B - Incorrect:** prospective overruling concerns temporal effect of judicial change.
- **C - Incorrect:** constitutional morality does not allocate Seventh Schedule fields.
- **D - Correct:** dominant nature and character determine the field despite incidental effects.

Examiner trap 8: Field characterisation precedes conflict analysis.

MCQ 9

Incidental or ancillary power allows a legislature to

A. adopt measures reasonably necessary to make a valid legislative entry effective. B. take over any neighbouring field whenever regulation is convenient. C. override a Fundamental Right without justification. D. avoid Article 254 by renaming a State law.

Answer: A.

Option-specific explanations:

- **A - Correct:** genuine auxiliary provisions travel with a valid subject grant.
- **B - Incorrect:** ancillary power cannot create an independent forbidden competence.
- **C - Incorrect:** legislative competence does not displace Part III.
- **D - Incorrect:** substance and actual conflict, not labels, control.

Examiner trap 9: Necessary connection is not unlimited implied power.

MCQ 10

Colourable legislation chiefly tests

A. whether legislators acted from political hostility. B. whether form conceals a law whose substance lies outside legislative competence. C. whether the law has any extra-territorial effect. D. whether a valid law is proportionate.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** political motive alone does not establish colourability.
- **B - Correct:** *K.C. Gajapati* focuses on disguised lack of constitutional power.
- **C - Incorrect:** extra-territorial State reach is tested by territorial nexus.
- **D - Incorrect:** proportionality reviews rights restrictions, not legislative-field disguise.

Examiner trap 10: 'Fraud on the Constitution' is not a private-law fraud finding.

MCQ 11

A State tax reaches transactions with an out-of-State element. The territorial-nexus test asks whether

A. Parliament consented to the tax. B. the State has any commercial interest at all. C. there is a real and sufficient connection relevant to the imposed liability. D. the tax appears in the Concurrent List.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Parliamentary consent is not the ordinary Article 245 nexus test.
- **B - Incorrect:** a remote or illusory interest is insufficient.
- **C - Correct:** *R.M.D. Chamarbaugwala* requires substantial, pertinent connection.
- **D - Incorrect:** territorial reach and list classification are separate inquiries.

Examiner trap 11: A factual connection must also relate to the legal burden imposed.

MCQ 12

Article 254 repugnancy is centrally triggered when

A. a Union executive direction differs from a State policy. B. a State law incidentally touches a Union subject. C. two constitutional provisions use similar language. D. valid Union and State laws in the same Concurrent field are actually inconsistent.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** executive-policy difference is not statutory repugnancy.

- **B - Incorrect:** incidental field overlap is handled first through competence doctrine.
- **C - Incorrect:** constitutional-provision reconciliation invokes harmonious construction.
- **D - Correct:** same Concurrent field and actual conflict are essential preconditions.

Examiner trap 12: Repugnancy is not the default label for federal overlap.

MCQ 13

What is the effect of valid Presidential assent under Article 254(2)?

A. The State law may prevail in that State over the identified Parliamentary conflict, subject to later Parliamentary override. B. The State obtains permanent immunity from all future central law. C. The assent cures State legislative incompetence. D. The State law becomes a constitutional amendment.

Answer: A.

Option-specific explanations:

- **A - Correct:** assent creates bounded State-specific priority while Parliament retains later override power.
- **B - Incorrect:** Article 254(2) expressly preserves Parliament's later legislative authority.
- **C - Incorrect:** assent cannot create subject-matter competence the State lacks.
- **D - Incorrect:** assent under Article 254 is not the Article 368 amendment process.

Examiner trap 13: Assent is conflict-specific, not a competence certificate.

MCQ 14

The 'occupied field' idea is properly used when

A. any central law touches a remotely related subject. B. Parliament intended an exhaustive code in the same Concurrent field, producing inconsistency with State supplementation. C. a court wishes to expand Union power for convenience. D. a State law has extra-territorial consequences.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** mere central legislation does not occupy every adjacent field.
- **B - Correct:** field identity, statutory scheme and exhaustive intent must be demonstrated.
- **C - Incorrect:** federal allocation cannot rest on judicial convenience.
- **D - Incorrect:** extra-territorial operation invokes Article 245 and nexus.

Examiner trap 14: Occupied field belongs inside disciplined Article 254 analysis.

MCQ 15

Harmonious construction seeks to

A. give automatic preference to Directive Principles. B. permit courts to ignore an express proviso. C. allow apparently conflicting provisions meaningful operation without rendering either dead. D. replace Article 246 priority with equitable balancing.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** harmony does not create categorical DPSP supremacy.
- **B - Incorrect:** express qualifications remain binding.
- **C - Correct:** reconciliation is attempted before displacement.
- **D - Incorrect:** interpretation cannot erase an enacted federal priority rule.

Examiner trap 15: Harmony preserves text; it does not neutralise priority clauses.

MCQ 16

Federal supremacy should ordinarily be invoked

A. before examining the entries. B. whenever Parliament asserts national interest. C. instead of pith and substance. D. after reasonable harmonious allocation fails and the Constitution supplies a priority rule.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** field identification and reconciliation come first.
- **B - Incorrect:** political assertion is not a constitutional conflict rule.
- **C - Incorrect:** pith and substance often resolves the overlap.
- **D - Correct:** supremacy answers the irreducible conflict authorised by Articles 246 or 254.

Examiner trap 16: Supremacy is the last-stage rule, not the opening assumption.

MCQ 17

Reading into is most defensible when

A. a narrowly necessary safeguard follows from constitutional text or structure and does not contradict enacted law. B. the court prefers a policy omitted by Parliament. C. a statute has only one clearly unconstitutional meaning and no gap. D. a smaller bench disagrees with a larger bench.

Answer: A.

Option-specific explanations:

- **A - Correct:** strong constitutional basis and consistency with legislation are required.
- **B - Incorrect:** preference cannot substitute for legislative competence.
- **C - Incorrect:** absence of lawful meaning points toward invalidation, not invention.
- **D - Incorrect:** bench disagreement must follow reference discipline.

Examiner trap 17: A rights-protective purpose still needs legal foothold.

MCQ 18

What lesson does *Shreya Singhal v Union of India* provide for reading down?

A. Any vague speech offence can be saved by prosecutorial assurances. B. A court cannot cure incurably vague and overbroad text by writing a new offence. C. Section 66A survived for non-citizens. D. Reading down and severability are identical.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** executive assurances cannot supply missing statutory standards.
- **B - Correct:** the Court struck Section 66A rather than judicially reconstructing it.
- **C - Incorrect:** the provision was invalidated, not preserved through claimant classification.
- **D - Incorrect:** one narrows meaning; the other removes separable invalid matter.

Examiner trap 18: Judicial restraint may require striking down rather than artificial saving.

MCQ 19

Prospective overruling in India was introduced in constitutional adjudication by

A. *Kesavananda Bharati*. B. *Minerva Mills*. C. *I.C. Golaknath*. D. *M. Karunanidhi*.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** *Kesavananda* established the basic-structure limitation.
- **B - Incorrect:** *Minerva Mills* protected limited amendment and Part III-Part IV harmony.
- **C - Correct:** *Golaknath* fashioned future operation while protecting prior effects.
- **D - Incorrect:** *M. Karunanidhi* is a repugnancy authority.

Examiner trap 19: Prospective overruling concerns time, not the binding hierarchy itself.

MCQ 20

Which proposition about prospective overruling is correct?

A. Every overruling judgment automatically operates prospectively. B. A lower court may invoke it to disregard existing Supreme Court law. C. It permanently validates the overruled rule. D. The competent court must expressly and reasonably define the protected past effects and future rule.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** prospective operation is not presumed whenever doctrine changes.
- **B - Incorrect:** Article 141 continues to bind lower courts.
- **C - Incorrect:** preserved transactions do not make the old proposition eternally valid.
- **D - Correct:** temporal tailoring is a deliberate judicial remedy.

Examiner trap 20: Do not confuse future effect with optional obedience.

MCQ 21

A ratio decidendi is

A. the legal principle necessary to resolve the issue on the material facts. B. every statement in a Supreme Court judgment. C. only the final operative order, without reasons. D. a dissent that later writers prefer.

Answer: A.

Option-specific explanations:

- **A - Correct:** necessity to the decided issue gives the proposition binding force.
- **B - Incorrect:** judgments contain facts, submissions and obiter as well as ratio.
- **C - Incorrect:** Article 141 law is derived from reasoned determination, not order alone.
- **D - Incorrect:** a dissent is not the majority's binding law.

Examiner trap 21: Extract ratio from issue, facts, reasoning and result together.

MCQ 22

Per incuriam most narrowly describes a decision

A. that is politically controversial. B. rendered in ignorance of a binding statute or controlling precedent. C. whose facts can be distinguished. D. that applies prospective overruling.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** controversy does not affect precedential status.
- **B - Correct:** the exception addresses overlooked binding authority.

- **C - Incorrect:** distinguishing accepts the precedent but denies factual/legal fit.
- **D - Incorrect:** temporal effect is unrelated to ignored authority.

Examiner trap 22: Per incuriam is exceptional, not a convenient disagreement label.

MCQ 23

A point is decided sub silentio when

A. the court expressly rejects it after full argument. B. a statute is partially severed. C. the point passes without conscious determination despite the case outcome. D. a larger bench overrules a smaller bench.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** express reasoned rejection is the opposite of silence.
- **B - Incorrect:** severability concerns invalid parts of law.
- **C - Correct:** the point lacks conscious adjudication and therefore authoritative force on that issue.
- **D - Incorrect:** express overruling is a hierarchy event.

Examiner trap 23: A result can exist without every latent legal issue becoming ratio.

MCQ 24

If a three-judge bench doubts a five-judge bench ratio, it should

A. declare the larger case per incuriam without analysis. B. follow any newer two-judge decision. C. use Article 142 to avoid Article 141. D. follow it or seek consideration by an appropriate larger bench.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** a smaller bench cannot nullify controlling law by label.
- **B - Incorrect:** recency does not defeat bench strength.
- **C - Incorrect:** complete-justice power is not an escape from binding law.
- **D - Correct:** *Dawoodi Bohra* requires hierarchical discipline and proper reference.

Examiner trap 24: Bench strength outranks simple chronology.

MCQ 25

Which statement about the basic-structure doctrine is correct?

A. Article 368 power is wide but cannot damage or destroy the Constitution's basic structure. B. Article 13 contains a closed list of basic features. C. The doctrine reviews every administrative order. D. Parliament cannot amend any Fundamental Right.

Answer: A.

Option-specific explanations:

- **A - Correct:** *Kesavananda Bharati* reconciles amendability with substantive limitation.
- **B - Incorrect:** neither Article 13 nor any Schedule contains an exhaustive list.
- **C - Incorrect:** ordinary State action is reviewed through its own provisions and standards.
- **D - Incorrect:** rights may be amended so long as basic structure is not damaged.

Examiner trap 25: Limited power does not mean frozen constitutional text.

MCQ 26

What is the significance of 24 April 1973 for the Ninth Schedule?

A. All earlier laws were judicially repealed that day. B. It is the *Kesavananda* cut-off used by *Waman Rao* and *I.R. Coelho* for later insertions. C. Article 31B ceased to exist. D. Only tax laws added later are reviewable.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** the date did not repeal pre-existing Ninth Schedule laws.
- **B - Correct:** later insertions face basic-structure review through the specified doctrine.
- **C - Incorrect:** Article 31B remains in the Constitution.
- **D - Incorrect:** review is not confined to taxation.

Examiner trap 26: Post-cut-off review does not mean automatic invalidity.

MCQ 27

Minerva Mills v Union of India is best associated with

A. validating unlimited amendment power. B. holding Directive Principles wholly subordinate in every case. C. limited amending power, judicial review and harmony between Parts III and IV. D. creating the Ninth Schedule.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** the judgment invalidated attempts to exclude amendment review.
- **B - Incorrect:** it protected balance rather than absolute rights supremacy.
- **C - Correct:** these linked principles controlled the Forty-second Amendment provisions.
- **D - Incorrect:** the First Amendment created Article 31B and the Ninth Schedule.

Examiner trap 27: Part III-Part IV harmony differs from either Part annihilating the other.

MCQ 28

The 2015 NJAC judgment invalidated

A. the Forty-fourth Amendment's Article 300A change. B. only an executive memorandum. C. the First Amendment's Ninth Schedule. D. the Ninety-ninth Amendment and NJAC Act for damaging judicial independence.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Article 300A was not the NJAC issue.
- **B - Incorrect:** the constitutional amendment and statute were directly challenged.
- **C - Incorrect:** Ninth Schedule creation was not before the NJAC bench.
- **D - Correct:** judicial independence was treated as a basic feature in the appointments design.

Examiner trap 28: Judicial independence does not imply freedom from institutional accountability.

MCQ 29

Constitutional morality most accurately means

A. fidelity to constitutional text, procedures, equal citizenship and institutional role obligations. B. the morality preferred by the numerical majority. C. a judge's personal ethical intuition. D. automatic invalidity of every unpopular law.

Answer: A.

Option-specific explanations:

- **A - Correct:** constitutional sources and role discipline distinguish the doctrine.
- **B - Incorrect:** constitutional morality can restrain oppressive social majorities.

- **C - Incorrect:** personal morality lacks the required legal anchor.
- **D - Incorrect:** invalidity still requires a governing provision, test and remedy.

Examiner trap 29: Always name the constitutional anchor rather than invoke morality alone.

MCQ 30

Transformative constitutionalism is best understood as

A. judicial power to enact any progressive policy. B. the lawful constitutional project of dismantling status hierarchy through rights, democracy and remedies. C. replacement of Parliament by constitutional courts. D. a doctrine confined to property rights.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** transformation remains bounded by competence and text.
- **B - Correct:** liberty, equality, dignity and fraternity guide lawful anti-hierarchy change.
- **C - Incorrect:** democratic institutions remain central to transformation.
- **D - Incorrect:** the doctrine has broad equality and dignity relevance.

Examiner trap 30: Transformative purpose is not institutional substitution.

MCQ 31

Under the classical ERP approach, *Shirur Mutt* principally helps courts

A. decide repugnancy under Article 254. B. apply prospective overruling. C. distinguish matters of religion from associated secular activities under Articles 25-26. D. define an exhaustive basic-structure list.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** ERP is not a federal-conflict doctrine.
- **B - Incorrect:** it does not determine temporal effect of precedent.
- **C - Correct:** this is the classical religious-freedom inquiry.
- **D - Incorrect:** basic structure arises under Article 368.

Examiner trap 31: ERP identification does not displace express limits or competing rights.

MCQ 32

A complex challenge to a State law should ordinarily be analysed in which sequence?

A. Remedy, then facts, then legislative entry. B. Constitutional morality alone, then result. C. Article 254 first in every federal dispute. D. Competence, meaning, rights standard, invalidity scope, temporal effect, precedent and remedy.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** remedy follows identification of the legal defect.
- **B - Incorrect:** morality is an aid, not a complete adjudicatory route.
- **C - Incorrect:** Article 254 has a Concurrent-field precondition.
- **D - Correct:** the sequence keeps distinct doctrines in their proper constitutional roles.

Examiner trap 32: The most famous doctrine is not always the first applicable doctrine.

PYQS AND ANSWER PRACTICE

Verified PYQ key discipline

Only a final official or repository-local official key may support an official answer. Where that key is absent, the exact withholding sentence is used; coaching keys and inferred model answers are not substituted.

Verified routed PYQ 1 - UPSC Mains 2019, GS Paper II, Question 4

Exact question: "From the resolution of contentious issues regarding distribution of legislative powers by the courts, 'Principle of Federal Supremacy' and 'Harmonious Construction' have emerged. Explain." **10 marks, 150 words.**

Demand / routing note: Explain the judicial sequence: broad entry interpretation and pith/substance, reconciliation through harmonious construction, then express federal priority only for irreducible conflict.

Answer withheld pending official UPSC key.

Verified routed PYQ 2 - UPSC Mains 2021, GS Paper II, Question 1

Exact question: "'Constitutional morality' is rooted in the Constitution itself and is founded on its essential facets. Explain the doctrine of 'Constitutional morality' with the help of relevant judicial decisions." **10 marks, 150 words.**

Demand / routing note: Define constitutional rather than social morality, use institutional and equal-citizenship applications, and state the text/precedent/remedy limit.

Answer withheld pending official UPSC key.

Verified routed PYQ 3 - UPSC Mains 2019, GS Paper II, Question 12

Exact question: "'Parliament's power to amend the Constitution is a limited power and it cannot be enlarged into absolute power.' In the light of this statement, explain whether Parliament under Article 368 of the Constitution can destroy the Basic Structure of the Constitution by expanding its amending power." **15 marks, 250 words.**

Demand / routing note: Trace *Kesavananda Bharati* and *Minerva Mills*: wide amendment power, implied substantive limit, no self-enlargement into unlimited constituent sovereignty.

Answer withheld pending official UPSC key.

Verified routed PYQ 4 - UPSC Prelims 2020, GS Paper I, Question 13

Exact question: Consider the following statements:

1. The Constitution of India defines its 'basic structure' in terms of federalism, secularism, fundamental rights and democracy.
2. The Constitution of India provides for 'judicial review' to safeguard the citizens' liberties and to preserve the ideals on which the Constitution is based.

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Demand / routing note: Local routing verifies the stem but records that the final official/local key is unavailable; no answer is inferred from coaching keys.

Answer withheld pending official UPSC key.

Verified routed PYQ 5 - UPSC Prelims 2023, GS Paper I, Question 34

Exact question: In India, which one of the following Constitutional Amendments was widely believed to be enacted to overcome the judicial interpretations of the Fundamental Rights?

A. First Amendment B. Forty-second Amendment C. Forty-fourth Amendment D. Eighty-sixth Amendment

Demand / routing note: Repository status records that the item was dropped; a dropped question is not assigned a scored official answer.

Answer withheld pending official UPSC key.

Verified routed PYQ 6 - UPSC Mains 2025, GS Paper II, Question 11

Exact question: "Constitutional morality is the fulcrum which acts as an essential check upon the high functionaries and citizens alike...." In view of the above observation of the Supreme Court, explain the concept of constitutional morality and its application to ensure balance between judicial independence and judicial accountability in India. **15 marks, 250 words.**

Demand / routing note: Define role morality, protect decisional independence, and connect accountability to reasons, recusal, ethics, open justice and constitutionally valid review.

Answer withheld pending official UPSC key.

Six original solved Mains questions

M1. Distinguish severability from reading down. Explain why both are limited by the prohibition on judicial rewriting.

Directive: Distinguish and explain | **Marks:** 10 | **Answer in:** 150 words.

Demand decode: Identify the governing constitutional text, organise the answer by the doctrine's elements, attach named authority to each major claim, analyse the legal effect and finish with the strongest qualification.

Model answer: Severability and reading down preserve constitutionality through different operations. Severability, anchored in Article 13's phrase "to the extent", removes an invalid part only when textual separation, legislative intent and a workable remainder survive. In *R.M.D. Chamarbaugwala* (1957), the Court formulated this disciplined partial-invalidity approach. Reading down retains the provision but selects a narrower meaning that its words and scheme can reasonably bear; *Kedar Nath Singh* (1962) is a standard example.

The distinction matters because deletion and interpretation affect legislative choice differently. *Shreya Singhal* (2015) refused to reconstruct Section 66A through missing standards, showing that constitutional avoidance ends where a new offence or policy code would have to be written. Thus, both doctrines favour a narrow remedy, but neither permits a court to replace the legislature's essential design.

Why this earns marks: It follows claim -> named evidence -> analysis -> qualification, obeys the directive and states the doctrine's limit rather than ending with a slogan.

Improvement route: Underline the governing Article, doctrine, holding and limitation; if time is short, compress examples before deleting the legal test.

M2. How do pith and substance and colourable legislation jointly police legislative competence?

Directive: Explain | **Marks:** 10 | **Answer in:** 150 words.

Demand decode: Identify the governing constitutional text, organise the answer by the doctrine's elements, attach named authority to each major claim, analyse the legal effect and finish with the strongest qualification.

Model answer: Pith and substance and colourable legislation examine competence from complementary directions. Under Articles 245-246 and the Seventh Schedule, pith and substance identifies a law's true nature through its object, scheme and effects. *Prafulla Kumar Mukherjee* (1947) shows that a law within its dominant field survives genuine incidental encroachment.

Colourable legislation then asks whether statutory form disguises a subject outside the enacting legislature's power. *K.C. Gajapati Narayan Deo* (1953) makes competence, not political motive, decisive: "fraud on the Constitution" is not proof of personal mala fides. Ancillary power may support measures reasonably necessary for a valid field, but cannot manufacture authority over an independent forbidden subject. Together, the doctrines preserve workable overlap while invalidating a dominant or disguised trespass.

Why this earns marks: It follows claim -> named evidence -> analysis -> qualification, obeys the directive and states the doctrine's limit rather than ending with a slogan.

Improvement route: Underline the governing Article, doctrine, holding and limitation; if time is short, compress examples before deleting the legal test.

M3. Examine the constitutional conditions for repugnancy and the effect of Presidential assent under Article 254(2).

Directive: Examine | **Marks:** 15 | **Answer in:** 250 words.

Demand decode: Identify the governing constitutional text, organise the answer by the doctrine's elements, attach named authority to each major claim, analyse the legal effect and finish with the strongest qualification.

Model answer: Article 254 is a conflict rule, not the starting point for every Union-State overlap. First, both enactments must be validly traceable to the same Concurrent List field. Pith and substance resolves competence; only then does repugnancy arise.

Deep Chand (1959) and *M. Karunanidhi* (1979) identify the central tests: direct collision, impossibility of simultaneous obedience, or Parliamentary intention to create an exhaustive code that leaves no room for inconsistent State supplementation. Mere existence of a central statute does not establish an "occupied field". Article 254(1) makes Parliamentary law prevail and the State law void only to the extent of repugnancy, preserving compatible operation.

Article 254(2) permits a State law reserved for and assented to by the President to prevail within that State over the identified earlier Parliamentary conflict. Assent must therefore be connected to the actual inconsistency; it cannot cure State legislative incompetence. Nor is the priority permanent: Parliament may later add to, amend, vary or repeal the assented State law. The doctrine balances national consistency with bounded State experimentation through text-specific rather than political supremacy.

Why this earns marks: It follows claim -> named evidence -> analysis -> qualification, obeys the directive and states the doctrine's limit rather than ending with a slogan.

Improvement route: Underline the governing Article, doctrine, holding and limitation; if time is short, compress examples before deleting the legal test.

M4. Trace the evolution and limits of the basic-structure doctrine, including Ninth Schedule review.

Directive: Trace and assess | **Marks:** 15 | **Answer in:** 250 words.

Demand decode: Identify the governing constitutional text, organise the answer by the doctrine's elements, attach named authority to each major claim, analyse the legal effect and finish with the strongest qualification.

Model answer: The basic-structure doctrine reconciles constitutional change with constitutional identity. The Twenty-fourth Amendment Act, 1971 affirmed Parliament's constituent power and inserted Articles 13(4) and 368(3). Yet *Kesavananda Bharati* (24 April 1973) held that Article 368, though wide, cannot damage or destroy basic structure.

Indira Nehru Gandhi (1975) invalidated the Thirty-ninth Amendment's Article 329A(4), protecting adjudication, rule of law and free and fair elections. *Minerva Mills* (1980) struck the Forty-second Amendment's expanded Article 31C and Article 368(4)-(5), affirming limited amending power, judicial review and harmony between Parts III and IV.

For Article 31B and the Ninth Schedule, *Waman Rao* (1981) used 24 April 1973 as the cut-off. *I.R. Coelho* (2007) held that later insertions remain reviewable where their impact damages basic-structure principles reflected in Fundamental Rights. The 2015 NJAC judgment similarly invalidated the Ninety-ninth Amendment for damaging judicial independence.

The doctrine reviews amendments, not ordinary policy wisdom; its features are developed case by case, not contained in a closed exhaustive list.

Why this earns marks: It follows claim -> named evidence -> analysis -> qualification, obeys the directive and states the doctrine's limit rather than ending with a slogan.

Improvement route: Underline the governing Article, doctrine, holding and limitation; if time is short, compress examples before deleting the legal test.

M5. Critically examine constitutional morality, transformative constitutionalism and living interpretation as aids to rights adjudication.

Directive: Critically examine | **Marks:** 20 | **Answer in:** 250 words.

Demand decode: Identify the governing constitutional text, organise the answer by the doctrine's elements, attach named authority to each major claim, analyse the legal effect and finish with the strongest qualification.

Model answer: Constitutional morality requires fidelity to constitutional text, procedures, equal citizenship and institutional role obligations rather than social or personal morality. *Government of NCT of Delhi* (2018) applies it to responsible government; *Navtej Singh Johar* (2018) uses it against status-based exclusion.

Transformative constitutionalism treats the Constitution as a lawful project for dismantling entrenched hierarchy through liberty, equality, dignity, fraternity, democratic legislation and remedies. Living interpretation supplies the temporal bridge: enduring guarantees can govern new conditions. Thus *K.S. Puttaswamy* (2017) applied liberty and dignity to informational privacy, while *Maneka Gandhi* (1978) read procedure through an integrated rights framework.

These approaches prevent historical social prejudice or technological change from hollowing out rights. However, each risks becoming a slogan if detached from a governing Article, an identified injury, precedent, institutional competence and a calibrated remedy. Constituent Assembly Debates and comparative materials may illuminate context but cannot override adopted text. Courts should therefore state the textual anchor, the standard of review and the democratic or counter-right limit. Properly bounded, these aids enable constitutional adaptation; unbounded, they collapse interpretation into personal policy.

Why this earns marks: It follows claim -> named evidence -> analysis -> qualification, obeys the directive and states the doctrine's limit rather than ending with a slogan.

Improvement route: Underline the governing Article, doctrine, holding and limitation; if time is short, compress examples before deleting the legal test.

M6. A State law with extra-territorial effects is challenged for lack of competence, conflict with a Parliamentary law, violation of a Fundamental Right and vague wording. Construct the correct doctrinal sequence and remedy.

Directive: Analyse and construct | **Marks:** 20 | **Answer in:** 250 words.

Demand decode: Identify the governing constitutional text, organise the answer by the doctrine's elements, attach named authority to each major claim, analyse the legal effect and finish with the strongest qualification.

Model answer: The challenge should be sequenced rather than answered by one doctrine. First identify the State entry under Articles 245-246. Apply pith and substance to the law's object and effects; tolerate only incidental encroachment. Test colourability if form disguises a subject outside power, and require a real and sufficient territorial nexus for the extra-State operation.

Second, ask whether both valid laws occupy the same Concurrent field. Under Article 254, *M. Karunanidhi* (1979) requires direct inconsistency, impossible simultaneous obedience or demonstrated exhaustive Parliamentary occupation. Presidential assent under clause (2) can create bounded State priority but cannot cure incompetence and remains subject to later Parliamentary override.

Third, identify the affected Fundamental Right and apply its standard-classification, arbitrariness or proportionality-rather than treating invalidity as self-explanatory. Fourth, choose the narrowest lawful remedy. Read down only if the words bear a valid meaning; *Shreya Singhal* (2015) forbids reconstruction of incurably vague text. Sever only if legislative intent and a workable remainder survive; otherwise strike the defective provision.

Finally, respect Article 141 ratio and bench strength. Any prospective operation must be expressly justified by the competent court. This sequence keeps competence, conflict, rights, meaning, time and remedy analytically distinct.

Why this earns marks: It follows claim -> named evidence -> analysis -> qualification, obeys the directive and states the doctrine's limit rather than ending with a slogan.

Improvement route: Underline the governing Article, doctrine, holding and limitation; if time is short, compress examples before deleting the legal test.